#	Case Name	Tentative
59.	Contreras v. Cotty Foods Corporation 2026-01568744	Defendant Cotti Foods Corporation's Motion to Quash Service of Summons and Complaint is GRANTED. (Code Civ. Proc. §418.10.) A motion to quash is available where the plaintiff has not achieved valid service of summons on a defendant because until valid service of a valid summons has been made, the court lacks jurisdiction over the defendant. (See Code Civ. Proc. §418.10, subd. (a)(1); see also *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.) When a defendant moves to quash service, the burden is on the plaintiff to establish jurisdiction by a preponderance of the evidence. (*School Dist. of Okaloosa County v. Superior Court* (1997) 58 Cal.App.4th 1126, 1131.) Plaintiff has failed to establish that the summons and complaint were served upon defendant in compliance with the requirements of Code Civ. Proc. §415.10, et seq. Plaintiff's proof of service of summons has errors and inconsistencies. It appears from what plaintiff has filed that the only attempt at service of process has been by mailing the summons and complaint to defendant. Code Civ. Proc. §415.30 provides the requirements that must be followed in order to serve a defendant with the summons and complaint via mail. Plaintiff has failed to show compliance with Code Civ. Proc. §415.30. Additionally, the summons filed and issued on 5/11/26 (ROA 2) improperly identifies Julieta Contreras as a Defendant and Cotti Foods Corporation as the Plaintiff. Plaintiff shall file an amended summons that corrects the defects in the currently issued summons. Plaintiff shall then serve defendant in a manner consistent with Code Civ. Proc. §§ 415.10, 415.20, or 415.30 and file a valid proof of service of summons. Plaintiff is encouraged to consult with the court's self-help desk. Moving defendant shall provide notice of this ruling.
60.		
61.	TandP LLC v. Evolve Bank & Trust	Defendant Luqra, LLC's motion for judgment on the pleadings is DENIED.

#	Case Name	Tentative
	2024-01396459	Standing. Luqra challenges the second amended complaint (SAC) in its entirety on the ground that plaintiff TandP LLC lacks standing to bring any of its claims, arguing: "The SAC fails as a matter of law because TandP seeks to recover funds that, by its own allegations, were processed for and owed to nonparty third-party merchants[.] TandP, therefore, has incurred no damages, yet pleads damages allegedly belonging to others, not a legally cognizable injury of its own. [¶] ... [¶] Because TandP seeks to recover funds not owed to itself, but alleged to be owed to nonparty merchants, the SAC pleads an injury belonging to others and fails in its entirety for lack of standing." (Mtn. P&As at pp. 7-8.) These contentions ignore the allegations of the SAC, which the court must take as true on a motion for judgment on the pleadings. (See *Sykora v. State Dept. of State Hospitals* (2014) 225 Cal.App.4th 1530, 1534.) The SAC alleges the existence of a contract and business relationship directly between plaintiff and defendants, by which plaintiff operated an e-wallet solution/program through plaintiff's platform/account with defendants. Specifically, the SAC alleges defendants agreed to process credit card transactions for plaintiff's e-wallet business, knowing plaintiff's business involved allowing plaintiff's third-party merchant customers to process credit card transactions through plaintiff's e-wallet platform/account with defendants, and that Luqra assured plaintiff that this payment processing arrangement was legitimate and stable. (See SAC ¶¶ 9-13, 16-18, 29, 36-39.) The SAC further alleges that shortly after defendants began processing payments for plaintiff's customers, defendants abruptly shut down plaintiff's e-wallet platform and terminated the parties' contract without proper notice based on a number of false assertions/accusations and improperly withheld $1,444,069.06 of plaintiff's funds without justification, which defendants have failed and refused to release to date. (See *id.* ¶¶ 14-17 ["Luqra's January 2024 *statement for TandP* showed an ending balance of $1,444,069.06"], 18 ["TandP has made numerous attempts to communicate with Luqra and Evolve regarding the status of *TandP's funds*"], 19-21 ["TandP expressed TandP's genuine concern that Luqra continues to hold $1,444,069.06 of *TandP's money*," which TandP "owes" (i.e., is in turn obligated to pay) "to TandP's third party merchants"], 22-24 [TandP reiterated its "grave concerns over Luqra's and Evolve's withholding of *TandP's funds*" and "Luqra ... improperly block[ing] TandP's ability even to log on and view *TandP's account*"], 27 ["To date, Luqra or Evolve